

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tim Hartnett	Team: Team # 5	CCRB Case #: 200601262	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/28/2006 5:00 PM	Location of Incident: Across the street from § 87(2)(b) [REDACTED]	18 Mo. SOL 7/28/2007	Precinct: 62
Date/Time CV Reported Mon, 01/30/2006 12:42 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/30/2006 12:42 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Pavel Mashkov	10242	931809	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Abuse: PO Eduard Nogol threatened to arrest § 87(2)(b) [REDACTED]	A . Exonerated

Synopsis:

On January 28, 2006, at approximately 5:00 p.m., § 87(2)(b) double-parked his car across the street from § 87(2)(b) in Brooklyn. He walked into a store at § 87(2)(b) and spoke with an employee, § 87(2)(b). After being in the store for 10 minutes, a police car pulled up and two officers, later identified as Officer Eduard Nogol and Officer Pavel Mashkov, approached his car. He left the store and said he'd move his car. PO Nogol then accused § 87(2)(b) of running a red traffic light and talking on his cell phone while driving. § 87(2)(b) disputed the accusations and tried to explain that he had been in the store for the past 10 minutes and had a witness to verify that. § 87(2)(b) started walking back to the store to find § 87(2)(b) and PO Nogol told him to sit in his car. § 87(2)(b) ignored PO Nogol, he started walking toward the store and PO Nogol stated, "Get in the car or you'll be arrested." § 87(2)(b) came out of the store and § 87(2)(b) walked back towards his car. He and § 87(2)(b) proceeded to dispute PO Nogol's accusations. PO Nogol again threatened to arrest § 87(2)(b) if he did not sit in his car. § 87(2)(b) sat in his car and a few minutes later PO Nogol handed him a summons § 87(2)(b). This case was eligible for mediation. On February 6, 2006, the mediation process was explained to § 87(2)(b) and he articulated that he did not wish to mediate the case.

§ 87(2)(g)

It is therefore recommended that allegation A be Exonerated.

Summary of Complaint:

On January 30, 2006, § 87(2)(b) a § 87(2)(b) old male § 87(2)(b), called the CCRB and filed a complaint. (Enc. 3A-B) On February 10, 2006, he was interviewed at the CCRB. (Enc. 4A-C) § 87(2)(g)

§ 87(2)(b) stated that on January 28, 2006, at about 5:00 p.m., he double-parked his car across the street from § 87(2)(b) near the intersection with West 10th Street in Brooklyn. He got out of his car and went into § 87(2)(b) an eyeglasses store, to deliver some eyeglasses. He spoke with an employee of the store named § 87(2)(b) regularly made deliveries to the store and knew § 87(2)(b) because they had interacted with each other on several prior occasions. After speaking with § 87(2)(b) for about 10 minutes, § 87(2)(b) heard a police siren, looked outside and saw a marked patrol car pull up behind his car and two officers approach his car. § 87(2)(b) left the store and approached the officers to see what was going on. As he approached, he told the officers that he would move his car. One of the officers, later identified as PO Eduard Nogol of the 62nd Precinct, was standing at the driver's side of § 87(2)(b)'s car and the other officer, identified through investigation as PO Pavel Mashkov of the 62nd Precinct, stood at the patrol car.

When § 87(2)(b) reached his car, PO Nogol asked him for his driver's license, registration and insurance card. § 87(2)(b) complied with the request and then said, "You don't really need all that just to issue a double-parking summons." PO Nogol responded, "Shut your mouth. I've been following you for a while. I saw you run a red light on West 6th Street and talking on you cell phone while driving. So just shut your mouth and sit in your car." § 87(2)(b) told the officer that this was untrue because he had not recently been on West 6th Street and he had been in the store for the past 10 minutes. PO Nogol again stated, "Sit in your car." § 87(2)(b) told PO Nogol that he had a witness and the officer responded, "You're getting a ticket."

§ 87(2)(b) starting walked back towards the store so that he could find § 87(2)(b) to verify his version of events. As he was walking towards the store, PO Nogol shouted, "Get in the car or you'll be arrested." PO Mashkov used the loud speaker in the patrol car and told § 87(2)(b) to get in the car but made no threat of arrest. As this was happening, § 87(2)(b) exited the store so § 87(2)(b) walked back to his car. § 87(2)(b) approached PO Nogol and she and § 87(2)(b) attempted to explain that he was in the

store and the PO Nogol was wrong. PO Nogol again told § 87(2)(b) "Sit in the car or you'll be arrested."

§ 87(2)(b) sat in his car and waited while PO Nogol went back to his patrol car and wrote out two summonses. A few minutes later PO Nogol came back to § 87(2)(b)'s car and handed him a summons § 87(2)(b) and a summons § 87(2)(b). The officer's name on the summons was "Nogol." PO Nogol and PO Mashkov then left the location.

Results of Investigation:

Witness § 87(2)(b)

During his CCRB interview, § 87(2)(b) provided a written statement signed by § 87(2)(b) on February 8, 2006. (Enc. 5) On February 23, 2006, Inv. Hartnett called § 87(2)(b) at work. (Enc. 6) § 87(2)(g)

§ 87(2)(b) stated that on January 28, 2006, § 87(2)(b) double-parked in front of her store located at § 87(2)(b) in Brooklyn and came inside the store. After about 10 minutes, a police car pulled behind the car. § 87(2)(b) left the store and approached his car. § 87(2)(b) followed behind him and waited outside the store. An officer, later identified as PO Eduard Nogol, then began to yell at § 87(2)(b) and stated that he had seen § 87(2)(b) run a red light. § 87(2)(b) stated that he had not run any red lights and PO Nogol stated, "Sit in the car or you're going to be arrested." § 87(2)(b) sat in his car and § 87(2)(b) approached PO Nogol. She explained that she was with § 87(2)(b) for the 10 minutes prior to PO Nogol's arrival and § 87(2)(b) therefore could not have run the red light as alleged. PO Nogol told her to mind her business. A few minutes later PO Nogol handed § 87(2)(b) two summonses and left the location.

Officer Eduard Nogol, 62nd Precinct:

On January 28, 2006, PO Eduard Nogol issued § 87(2)(b) summons number § 87(2)(b) for § 87(2)(b) and summons number § 87(2)(b) § 87(2)(b). (Enc. 7) That same day PO Nogol noted the summonses in his memo book. (Enc. 9A-B) On March 23, 2006, he was interviewed at the CCRB. (Enc. 9A-B) § 87(2)(g)

During his CCRB interview, PO Nogol stated that at approximately 5:12 p.m. on January 28, 2006 he was in a patrol car with Officer Pavel Mashkov. His patrol car was parked near the intersection of West 7th Street and Avenue U in Brooklyn and was facing westbound. At that intersection, PO Nogol and PO Mashkov observed a driver, later identified as § 87(2)(b) talking on his cell phone while driving a car eastbound along Avenue U. § 87(2)(b) then made an illegal U-turn in front of the officers, ran through a red traffic signal and headed westbound along Avenue U. PO Nogol was driving the patrol car and immediately followed § 87(2)(b)'s vehicle.

PO Nogol did not lose sight of § 87(2)(b)'s car and saw him double-park the car along Avenue U near West 11th Street, exit the car and begin to walk to the front entrance of a store on the opposite side of Avenue U. As § 87(2)(b) was walking towards the store, PO Nogol ordered him to stop and move his car because it was blocking traffic. § 87(2)(b) stated that he just needed to get something inside real quick and then walked into the store.

A few seconds later § 87(2)(b) came out of the store. PO Nogol asked § 87(2)(b) for his driver's license and registration and he gave it to the officer. PO Nogol then went back to his patrol car to write two summonses, § 87(2)(b). PO Nogol explained that § 87(2)(b) violated § 87(2)(b). As PO Nogol was writing the summonses, § 87(2)(b) was pacing back and forth down the street, cursing and complaining about receiving a summons. § 87(2)(b)'s actions caused several people to stop and see what was going on. PO Nogol and PO Mashkov ordered § 87(2)(b) to stay at his car but he ignored the

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: